Necessity & Duress

Justification and Excuse

This Week

Wednesday — Rachel Black (guest speaker, in-person)

Thursday — OPTIONAL Quiz 4 posted

Friday — OPTIONAL Quiz 5 posted

Next Week

Monday — Jared Fishman (guest speaker, over Zoom)

Tuesday — Self-Defense (Constructive Monday, in-person)

Tuesday — Recorded Insanity Lecture

Tuesday — Mock Exam & poll for online review session posted

The Framework

Justification: **You made the right choice.**

Excuse: **You had no real choice.**

JUSTIFICATION

Necessity (Choice of Evils)

	COMMON LAW	MPC
Proportionality	Must "clearly outweigh"	Must be **"greater than"**
Imminence	Threat must be imminent	**No strict requirement**
Fault	Barred if defendant at fault	**Fault-calibrated** — compare culpability to charged offense
Homicide	Categorically unavailable	**Available** (but untested)

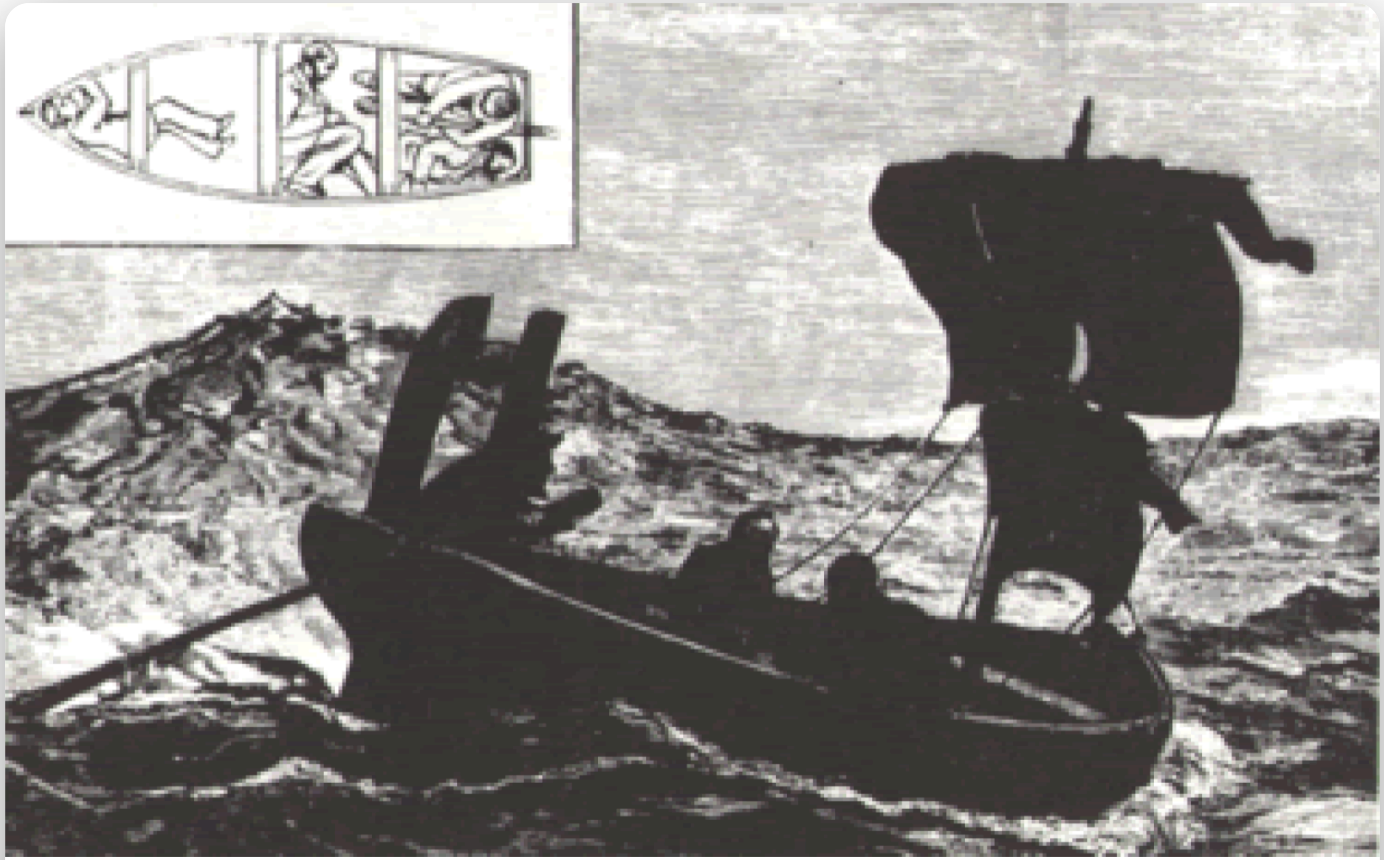
EXCUSE

Duress

	COMMON LAW	MPC
Threat of	Death or serious bodily injury	**Unlawful force** (lower bar)
Imminence	Must be imminent	**Need not be imminent**
Against	Defendant or close relation	**Any person**
Standard	Ordinary person would yield	Person of **reasonable firmness** in defendant's *situation*
Homicide	Unavailable	**Available**

Necessity

The lifeboat — and the limits of lesser evils



Pictures based on drawings by Edwin Stephens

REGINA V. DUDLEY & STEPHENS (Q.B. 1884)

The Lifeboat

Four men cast away in an open boat, 1,600 miles from land. No food for eight days. No fresh water. On the twentieth day, two of the men killed the cabin boy and fed on his body for four days until rescue.

"In this case the weakest, the youngest, the most unresisting, was chosen."

— Lord Coleridge, C.J.

Prosecution

Can necessity ever justify killing an innocent person?

Defense

Three lives saved versus one lost — does the math change the moral calculus?

HOLDING

Necessity never justifies taking an innocent life.

"Who is to be the judge of this sort of necessity? By what measure is the comparative value of lives to be measured? Is it to be strength, or intellect, or what?"

"Such a principle once admitted might be made the legal cloak for unbridled passion and atrocious crime."

— Lord Coleridge, C.J.

Sentenced to death. Crown commuted to six months.

Can lives be **compared**?

Common Law

No. The principle leaves to him who is to profit by it to determine the necessity. The categorical bar prevents courts from ranking lives.

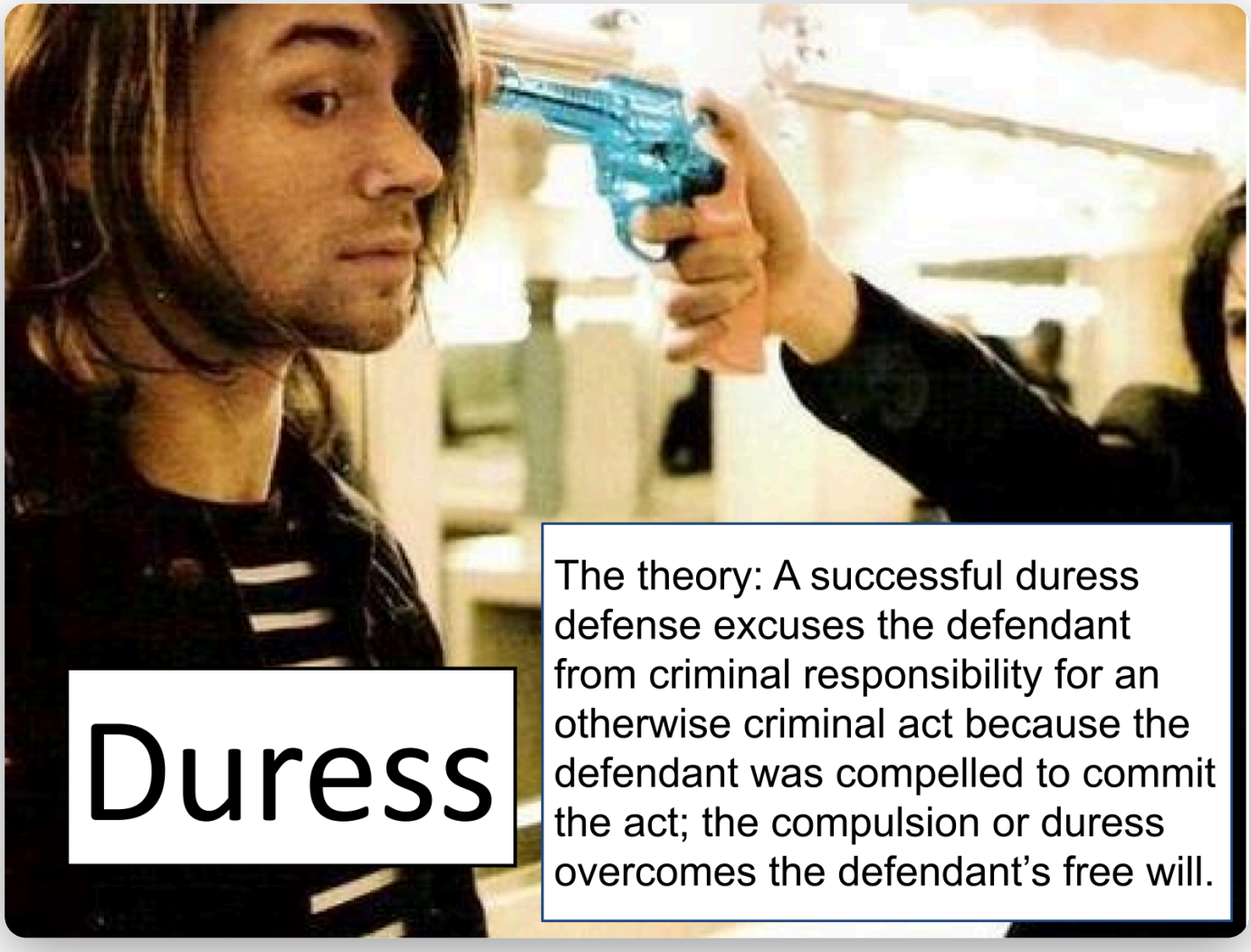
MPC

"The life of every individual must be taken to be of equal value and the **numerical preponderance** in the lives saved compared to those sacrificed surely should establish legal justification."

— MPC § 3.02 cmt.

Two frameworks, opposite results — same facts. What's actually driving the disagreement?

Note: The MPC drafters had to *invent* their case. No court has ever allowed necessity for homicide — so no real case could generate the precedent they wanted.



The theory: A successful duress defense excuses the defendant from criminal responsibility for an otherwise criminal act because the defendant was compelled to commit the act; the compulsion or duress overcomes the defendant's free will.

COMMON LAW

Duress

Threat

Death or serious bodily injury

Imminence

Threat must be present and immediate with no time to seek legal alternatives

Target

Defendant or close relation

Standard

Ordinary person would yield

Never available for homicide.

UNITED STATES V. DINGWALL (7TH CIR. 2021)

Duress in the Real World

In a relationship with repeated and sustained abuse, Dingwall committed three armed robberies. She now seeks to raise duress as a defense.

Prosecution

Is the common law imminence requirement met?

Defense

What should imminence require here?

HOLDING

Imminence does **not** require physical proximity.

> *"A jury could conclude that Stanley's continuous and unpredictable violence against Dingwall, contrasted with his being 'nice' when Dingwall did what he wanted, showed a level of manipulation and a style of communication that could lead a reasonable person in her situation to have interpreted Stanley's demands and behavior as a threat of imminent violence unless she committed each robbery."*
>
> — *United States v. Dingwall*, 6 F.4th 725 (7th Cir. 2021)

Reversed and remanded. The Fifth Circuit (*Willis*, 1994) disagrees, calling such evidence "inherently subjective."

What is the court **really** deciding?

Is the court saying that Dingwall, and all victims of sustained abuse, are innocent?

Or is this really a question about who gets to decide what a reasonable person would do, and how much context they have when making that decision?

Reform

Closing the gap between doctrine and reality

Two defendants suffer sustained abuse.

Romero

Coerced into a series of robberies by her abuser.

Webb

Fails to get medical care for her child because she fears what her abuser will do. The child dies.

Neither qualifies for duress under the traditional doctrine.

But assume both get to present all the evidence they want and receive a jury instruction on duress. Who has the better chance of convincing a jury?

UNITED STATES V. WEBB

The Split Verdict

The jury got the case. Same defendant. Same coercion. Two counts.

Acquitted

Accessory after the fact

Convicted

Injury to a child

What line is the jury drawing?

Three Pathways

Survivors' Justice Acts

Sentencing mitigation and resentencing. Conviction stays.

Doctrinal Reform

Relax imminence. Admit battering evidence. Extend duress to homicide.

Coercive Control Defense

New standalone defense. No discrete imminent threat required.

Coming Up

Rachel Black

Senior Legal Strategist, Climate Program • Public Citizen

Wednesday

Jared Fishman

Justice Innovation Lab • GW Law

Monday